

UPSC INDIAN POLITY

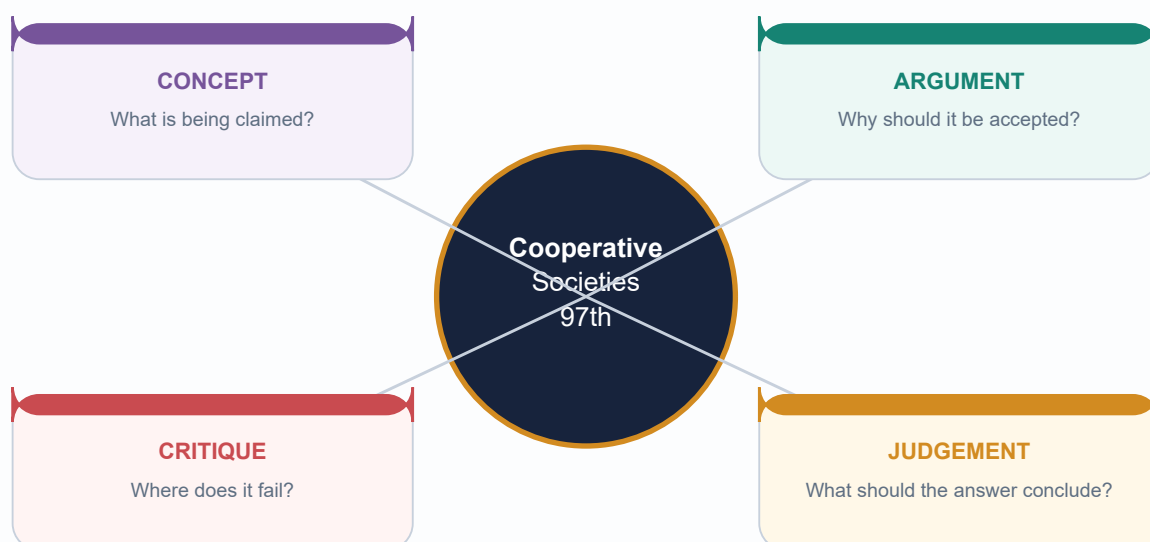
Cooperative Societies (97th Amendment) — ADVANCED / COMPLETE Deep-Learning Visual Notes

Indian Polity · GS Paper II · Prelims + Mains

Layer 1: Basic foundation · Layer 2: Advanced constitutional and exam depth

Sources: Cooperative-Societies.md + 39_Cooperative-Societies.md

Learning cards: 13



Facts from official sources | Inferences clearly marked | No fabricated data

HIGH UPSC RELEVANCE

HIGH

Foundation · Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Basic (foundation) · **GS-II***Foundation learning layer: concepts → constitutional detail → UPSC application.*

STATIC THEORY

• greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/39_Cooperative-Societies.md.*

MEMORY HOOK

greater than □ = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/39_Cooperative-Societies.md.*

MUST-KNOW FACTS

1. greater than = from book · □ = current link · □ = mnemonic. *Deep dive → advanced/39_Cooperative-Societies.md.*

MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → Core
Foundation

HIGH

Foundation · Snapshot

GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the foundation source layer.

KEY DATA

Item	Fact
Amendment	97th (2011)
Fundamental Right	Art 19(1)(c) — right to form co-operatives
DPSP	Art 43-B — promotion of co-operatives
New Part	Part IX-B, Arts 243-ZH → 243-ZT
SC verdict	Rajendra N. Shah (2021) — Part IX-B struck for state co-ops

MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → Snapshot

HIGH

Foundation · Core idea

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INTRO & ORIGIN

The **97th Amendment (2011)** gave co-operatives constitutional status via **three** changes (a **FR**, a **DPSP**, and **Part IX-B**). But co-operatives are a **State subject (Entry 32)**, so in **2021 the SC struck down Part IX-B for state co-operatives** (no state ratification under Art 368) — it **survives only for multi-state** co-operatives.

Foundation learning layer: concepts → constitutional detail → UPSC application.

CORE IDEA: RECALL MAP

Core idea

Dimension 1 The 97th Amendment (2011) gave co-operatives constitutional status via three changes (a FR, a DPSP, and Part IX-B). But co-operatives are a State subj	Dimension 2 greater than □ Three-in-one: FR 19(1)(c) · DPSP 43-B · Part IX-B (243-ZH→ZT).
Dimension 3 greater than □ Part IX-A = Municipalities; Part IX-B = Co-operatives (don't swap!).	Dimension 4 greater than □ 2021 SC: struck for state co-ops, survives for multi-state.

STATIC THEORY

- greater than □ **Three-in-one**: FR 19(1)(c) · DPSP 43-B · Part IX-B (243-ZH→ZT).
- greater than □ **Part IX-A = Municipalities**; **Part IX-B = Co-operatives** (don't swap!).
- greater than □ 2021 SC: struck for **state** co-ops, **survives for multi-state**.

MEMORY HOOK

greater than **Three-in-one**: FR 19(1)(c) · DPSP 43-B · Part IX-B (243-ZH→ZT). | greater than **Part IX-A = Municipalities**; **Part IX-B = Co-operatives** (don't swap!). | greater than **2021 SC**: struck for **state** co-ops, **survives for multi-state**.

MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → Core idea

HIGH

Foundation · Must-Know Facts

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INTRO & ORIGIN

- Parliament legislates for **multi-state** co-ops; **states** for the rest.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MUST-KNOW FACTS: RECALL MAP

Must-Know Facts

Dimension 1 ☐ Parliament legislates for multi-state co-ops; states for the rest.	Dimension 2 ☐ For the surviving Part IX-B field (multi-state co-operatives), board max 21 and
Dimension 3 5-year term; one SC/ST and two women seats apply where the society's individual membership includes those categories. Audit must be completed within s	Dimension 4 ☐ Art 19(1)(c) & Art 43-B remain valid after the 2021 verdict.

STATIC THEORY

- ☐ For the surviving Part IX-B field (multi-state co-operatives), board max **21** and
- 5-year term; one SC/ST and two women seats apply where the society's individual membership includes those categories. Audit must be completed within six months of the financial-year close.
- ☐ Art 19(1)(c) & Art 43-B remain valid after the 2021 verdict.

MUST-KNOW FACTS

1. Parliament legislates for **multi-state** co-ops; **states** for the rest.
2. For the surviving Part IX-B field (multi-state co-operatives), board max **21** and
3. Art 19(1)(c) & Art 43-B remain valid after the 2021 verdict.

MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
 ADVANCED / COMPLETE → Must-Know
 Facts

HIGH

Foundation • ☐ Current linkGS-II Indian
Polity

NEWS TRIGGER

- ☐ New **Ministry of Cooperation** (July 2021, Amit Shah) — "*Sahakar se Samridhi*." **Multi-State Co-operative Societies (Amendment) Act, 2023** added an Election Authority & rehabilitation fund; new bodies **NCOL / NCEL / BBSSL** and PACS computerisation.

INTRO & ORIGIN

Exam-ready treatment of ☐ Current link.

Foundation learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
 ADVANCED / COMPLETE → ☐ Current link

HIGH

Advanced • Core Foundation

GS-II Indian
Polity

INTRO & ORIGIN

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) · **GS Paper:** GS-II*Advanced learning layer: concepts → constitutional detail → UPSC application.*

CORE FOUNDATION: RECALL MAP

Core Foundation

Dimension 1

greater than **Subject:** Polity · **Tier:** Advanced (exam depth) ·
GS Paper: GS-II

Dimension 2

greater than **Grounded in:** Indian Polity by M. Laxmikant (97th
Amendment section; direct check of the local Sixth Revised
Edition PDF) + official court

Dimension 3

greater than □ = from source book · □□ = inference / case
law · □ = official/court-verified update.

Dimension 4

greater than **Companion:** basic/Cooperative-Societies.md.

STATIC THEORY

• greater than **Grounded in:** Indian Polity by M. Laxmikant (97th Amendment section; direct check of the local Sixth Revised
Edition PDF) + official court update.

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MUST-KNOW FACTS

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MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → Core
Foundation

HIGH

Advanced • PART A — THE 97th CONSTITUTIONAL
AMENDMENT ACT, 2011 □□GS-II Indian
Polity

INTRO & ORIGIN

Structured comparison from the advanced source layer.

KEY DATA

#	Change	Provision
1	☐ Right to form co-operative societies made a Fundamental Right	Article 19(1)(c) (added "co-operative societies")
2	☐ New Directive Principle on promotion of co-operatives	Article 43-B
3	☐ New Part IX-B "The Co-operative Societies"	Articles 243-ZH to 243-ZT

MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → PART A — THE
97th CONSTITUTIONAL AMENDMENT ACT,
2011 ☐☐

HIGH

Advanced · PART A — THE 97th CONSTITUTIONAL AMENDMENT ACT, 2011 ☐☐

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INTRO & ORIGIN

- ☐ Gave **constitutional status & protection** to co-operative societies through **three changes**:

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART A — THE 97TH CONSTITUTIONAL AMENDMENT ACT, 2011 ☐☐: RECALL MAP

PART A — THE 97th CONSTITUTIONAL AMENDMENT ACT, 2011 ☐☐

Dimension 1 ☐ Gave constitutional status & protection to co-operative societies through three changes:	Dimension 2 ☐ Part IX-B ensures co-operatives function in a democratic, professional, autonomous & economically sound manner.
Dimension 3 ☐ Parliament legislates for multi-state co-operatives; State Legislatures for other co-operatives.	

STATIC THEORY

- ☐ Part IX-B ensures co-operatives function in a **democratic, professional, autonomous & economically sound** manner.
- ☐ **Parliament** legislates for **multi-state** co-operatives; **State Legislatures** for **other** co-operatives.

MUST-KNOW FACTS

1. Gave **constitutional status & protection** to co-operative societies through **three changes**:
2. Part IX-B ensures co-operatives function in a **democratic, professional, autonomous & economically sound** manner.
3. **Parliament** legislates for **multi-state** co-operatives; **State Legislatures** for **other** co-operatives.

MAINS ANGLE**STUDY LINK**

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → PART A — THE
97th CONSTITUTIONAL AMENDMENT ACT,
2011 □□

HIGH

Advanced · Key features of Part IX-B □□ (exam-relevant detail)

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Board members **max 21**; **fixed 5-year term** for board & office-bearers.

Advanced learning layer: concepts → constitutional detail → UPSC application.

KEY FEATURES OF PART IX-B □□ (EXAM-RELEVANT DETAIL): RECALL MAP

Key features of Part IX-B □□ (exam-relevant detail)

Dimension 1 Board members max 21; fixed 5-year term for board & office-bearers.	Dimension 2 Reservation — one SC/ST and two women seats where the society's individual
Dimension 3 membership includes those categories.	Dimension 4 Independent audit within 6 months; max 6-month supersession of a board (elections meanwhile).

STATIC THEORY

- **Reservation** — one SC/ST and two women seats where the society's individual
- membership includes those categories.
- **Independent audit** within 6 months; **max 6-month** supersession of a board (elections meanwhile).
- Members' **right to information** about the society.

MAINS ANGLE**STUDY LINK**

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → Key features of
Part IX-B □□ (exam-relevant detail)

HIGH

Advanced • PART B — SUPREME COURT VERDICT (the big twist) □□

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INTRO & ORIGIN

□ **Union of India v. Rajendra N. Shah (2021)** — the SC (3-judge bench, 2:1) held that **Part IX-B is ultra vires** insofar as it applies to **co-operative societies under STATE legislatures**, because the amendment **was not ratified by at least half the state legislatures** as required by **Article 368(2)** (co-operatives being a **State List — Entry 32** subject).

Advanced learning layer: concepts → constitutional detail → UPSC application.

PART B — SUPREME COURT VERDICT (THE BIG TWIST) □□: RECALL MAP

PART B — SUPREME COURT VERDICT (the big twist) □□

Dimension 1 □ Union of India v. Rajendra N. Shah (2021) — the SC (3-judge bench, 2:1) held that Part IX-B is ultra vires insofar as it applies to co-operative soc	Dimension 2 □ BUT Part IX-B survives for MULTI-STATE co-operative societies (and UTs) — the Court applied the
Dimension 3 doctrine of severability.	Dimension 4 □□ Net effect: the constitutional framework now binds only multi-state co-operatives; single-state co-operatives revert to the respective state laws.

STATIC THEORY

- □ **BUT Part IX-B survives for MULTI-STATE co-operative societies** (and UTs) — the Court applied the
- **doctrine of severability.**
- □□ Net effect: the constitutional framework now binds **only multi-state** co-operatives; **single-state** co-operatives revert to the respective **state laws**.

MUST-KNOW FACTS

1. **BUT Part IX-B survives for MULTI-STATE co-operative societies** (and UTs) — the Court applied the

MAINS ANGLE

STUDY LINK

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → PART B —
SUPREME COURT VERDICT (the big twist)
□□

HIGH

Advanced • UPSC Traps

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INTRO & ORIGIN

subject; that's *why* Part IX-B needed state ratification.

Advanced learning layer: concepts → constitutional detail → UPSC application.

STATIC THEORY

- **Art 19(1)(c) & Art 43-B survive intact**, and Part IX-B survives for **multi-state** co-ops.

UPSC TRAPS

WRONG: 97th Amendment made "co-operatives" an entry in the Union List

CORRECT: co-operatives are a **State List (Entry 32)**

WRONG: The whole 97th Amendment was struck down

CORRECT: only **Part IX-B's application to state co-operatives** was struck;

WRONG: Art 43-B is a Fundamental Right

CORRECT: it is a **DPSP** (the FR is **Art 19(1)(c)**).

WRONG: Part IX-B is Articles 243-G...

CORRECT: it is **243-ZH to 243-ZT**.

WRONG: Part IX-A = co-operatives

CORRECT: **Part IX-A = Municipalities (74th Amdt); Part IX-B = co-operatives.**

MAINS ANGLE**STUDY LINK**

Cooperative Societies (97th Amendment) —
ADVANCED / COMPLETE → UPSC Traps

HIGH**Advanced • □ CA hooks (official/court-verified)**GS-II Indian
Polity**NEWS TRIGGER**

□ **Ministry of Cooperation** carved out (**July 2021**, first minister **Amit Shah**) with the motto "**Sahakar se Samriddhi**" — earlier co-operation was under the Agriculture Ministry. □ **Multi-State Co-operative Societies (Amendment) Act, 2023** — created a **Co-operative Election Authority**,

INTRO & ORIGIN

a **Co-operative Rehabilitation, Reconstruction & Development Fund**, and strengthened governance/transparency.

Advanced learning layer: concepts → constitutional detail → UPSC application.

□ **CA HOOKS (OFFICIAL/COURT-VERIFIED): RECALL MAP**□ **CA hooks (official/court-verified)**

Dimension 1 a Co-operative Rehabilitation, Reconstruction & Development Fund, and strengthened governance/transparency.	Dimension 2 □ New national bodies: NCOL (Organics), NCEL (Exports), BBSSL (Seeds); a national cooperative
Dimension 3 database; PACS computerisation drive.	

STATIC THEORY

- New national bodies: **NCOL** (Organics), **NCEL** (Exports), **BBSSL** (Seeds); a national **cooperative
- database**, PACS computerisation drive.

MAINS ANGLE**STUDY LINK**

Cooperative Societies (97th Amendment) —
 ADVANCED / COMPLETE → ☐ CA hooks
 (official/court-verified)

HIGH**Advanced · Mains angles****GS-II** Indian
Polity**INTRO & ORIGIN**

Exam-ready treatment of Mains angles.

Advanced learning layer: concepts → constitutional detail → UPSC application.

MAINS ANGLE

"Co-operatives are State subjects but need national vision." Examine the 97th Amendment and the 2021 SC verdict through the lens of federalism. The new Ministry of Cooperation: reviving the co-operative movement or centralising a State subject? Governance deficits in co-operatives (politicisation, mismanagement) and reforms under the 2023 Amendment.

STUDY LINK

Cooperative Societies (97th Amendment) —
 ADVANCED / COMPLETE → Mains angles

End of Register Notes — UPSC Agent / Copilot CLI